

to a less comprehensive enforcement of overtime laws” and that class proceedings would be “a significantly more effective practical means of vindicating the rights of the affected employees,” it must invalidate the waiver. (*Id.*)

Here, although Plaintiff does concede the general enforceability of class action waivers, Plaintiff argues that because the provision waives class action and representative claims is not mutual, does increase the level of substantive unconscionability. (Oppo p. 13: 17-27.) Plaintiff does not address the four factors in *Gentry* to determine the enforceability of class arbitration waivers. The Court does not find this provision substantively unconscionable.

On balance, Plaintiff has failed to meet his burden to show that the Mutual Agreement to Arbitrate Claims should not be enforced due to unconscionability. Thus, Defendant’s motion to compel arbitration shall be granted.

Stay

Under the FAA, courts must stay an action where “the issue involved in such suit or proceeding is referable to arbitration under an arbitration “agreement.” (9 U.S.C § 3.) It is not clear, however, that this provision applies to proceedings in state court. (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477, fn. 6 [noting the United States Supreme Court has not held this provision applies to state court proceedings]; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 410 [holding “section 4 of the USAA does not apply in California court” but not deciding whether section 3 applies].)

Under the CAA, courts “may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding.” (CCP § 1281.2.) In other circumstances, when a court “has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State,” the court “shall ... stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate.” (Code of Civil Procedure § 1281.4.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 [“the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

Conclusion

Based on the analysis above, Defendant CMG’s Motion to Compel Arbitration of claims is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the 2021 Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

8. 9:00 AM CASE NUMBER: MSC19-02596

CASE NAME: DEBRA WALKER VS. TROY MARTINEZ

*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT AND FOR AWARD OF ATTORNEY'S FEES AND SANCTIONS

FILED BY: WALKER, DEBRA

TENTATIVE RULING:

The motion to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6 is **denied**.

Plaintiff Debra Walker filed this suit against defendants, Troy Martinez and Normandie & Clauson, LLC, on December 11, 2019. Parties allegedly reached a settlement in June of 2024 with Judge Melissa O'Connell, over the course of two settlement conference appearances. The court minutes from the two June dates show nothing about the terms to which parties allegedly agreed. Plaintiff's attorney then reduced the agreement to a writing, which plaintiff signed in September of 2024. Defendants delayed in returning an executed copy. When defendants finally returned the agreement, it was not an identical copy, but rather (according to the characterization in the opposition) a "counteroffer," containing changes. Defendants requested that *plaintiff* accept the changes by initialing and signing a copy of the "counteroffer."

Plaintiff refused to accept the changes applied by defendants. Instead, she sent a new copy with different terms and noticed a site inspection and deposition of defendant Martinez. On March 5, 2025, defendants sent another "settlement offer" to plaintiff, which she did not sign. Notably, by May of 2025, there was no single document bearing both sides' signatures, and neither plaintiff nor defendants were represented by the same counsel as at the June 2024 settlement conference. Plaintiff's new counsel, Perry Popovich, told defendants' new counsel, Rachel Doughty, that parties did not agree about the "payment form" and that plaintiff would be filing an amended complaint.

On August 26, 2025, a CMC was held and defendants stated an intention to file a motion to dismiss based on the five year statute. Plaintiff then filed this motion on November 24, 2025, arguing the parties reached agreement to a settlement in June of 2024, and that any changes proposed by defendants were not material. Defendants oppose the motion, arguing that the parties never agreed to the material terms, but also that plaintiff's own conduct indicated she did not believe a settlement had been reached. Defendants provide evidence that plaintiff took actions inconsistent with a settlement when she, among other conduct, noticed discovery and announced an intention to amend the complaint. Plaintiff has not submitted a reply brief, but instead her attorney provides a declaration relating to the transfer of plaintiff's case from her previous counsel. This evidence, while improperly submitted on reply (see *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538), does not change the outcome here.

Pursuant to Code of Civil Procedure section 664.6(a):

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the

parties to enforce the settlement until performance in full of the terms of the settlement.

California courts have interpreted section 664.6 as creating “a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met.” (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429.). A trial court hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment. (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732, quoting *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.) “The trial court may not create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*Ibid.*) “Thus, a trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented ... to the material terms of the settlement.” (*Ibid.*)

Here, because there is no writing executed by both parties, the Court cannot enter judgment on the same. The agreement was reduced to *two* separate writings, one of which plaintiff accepted, the other which defendants accepted. It is not possible to conclude there was a meeting of the minds given these circumstances. While the Court might have accepted an argument that the terms supplied by defendants were not material at one point in time, plaintiff’s subsequent conduct, such as refusing to accept the new terms, suggests they *were* material. In addition to simply refusing to sign, plaintiff took actions requiring defendants to further incur attorneys’ fees, such as signaling an intent to amend the complaint, and noticing discovery.

As a result, there is not a “writing signed by the parties outside of the presence of the court” within the meaning of Code of Civil Procedure section 664.6(a), such that this motion could be granted. Accordingly, the request for sanctions is also denied.

9. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

***HEARING ON MOTION IN RE: RECONSIDERATION OF THE COURT'S ORDER ON DEFENDANT DAMIEN SEAN LAMONT ROSS' MOTION FOR SUMMARY JUDGMENT**

FILED BY: AMAZON.COM SERVICES LLC

TENTATIVE RULING:

Before the Court is Defendant Amazon.com Services LLC’s Motion for Reconsideration of the Court’s Order on Defendant/Cross-Complainant Damien Sean Lamont Ross’ Motion for Summary Judgment. The Court notes that Defendant Sokolovski filed a ‘joinder’ regarding Amazon’s motion for reconsideration.

Defendant/Cross-Complainant Ross’ Request for Judicial Notice is **granted**. (Cal. Evid. Code §452 (d).)

Factual and Procedural Background

On January 31, 2025, Ross filed his motion for summary judgment. On May 29, Amazon filed its opposition papers. Defendant Sokolovski filed an opposition on June 6. The motion was set for hearing on June 20, 2025.

The motion was directed toward six separate pleadings. As noted by the Court, each of these